

Report of the resolutions committee

Members of the Resolutions Committee met on June 22, 2026 to consider resolutions proposed by member districts for consideration at the 2026 Annual Meeting of the Association. Members present were: Beverley Griffin Dunne, MASC President-Elect, (Peabody/Essex Voc.) Chair Ex Officio, Paul Schlichtman (Arlington), Bridget Garabedian, Chair-Division I (Tewksbury), Barbara Davis, Chair-Division III (Holbrook), Charlie Ellis, Chair-Division VIII (Nashoba Reg. Voc. Tech.), Steve Miller (Mt. Greylock Regional), Melissa Costa, Chair-Division IX (New Bedford), Stephanie Clougherty, MASC Vice President (Carver), Laura Often, Chair-Division IV (Grafton), Michael Boudreau (Hamden-Wilbraham Regional), Sean Kennedy (Hamden-Wilbraham Regional), Lawrence MacDonald (Nashoba Reg. Voc. Tech.).

ALSO PRESENT: Patrick Francomano, esq., MASC General Counsel, Glenn Koocher, MASC Executive Director

The following resolutions were moved forward by the Resolutions Committee and approved by the Board of Directors.

RESOLUTION 1: SAFE ZONES

(Submitted by the New Bedford School Committee)

WHEREAS it is the right of every child, regardless of immigration status, to access a free public preK-12 education and for the District to welcome and support all students; and

WHEREAS the District has a responsibility to ensure that all students who reside within its boundaries, regardless of immigration status, can safely access a free public preK-12 education; and

WHEREAS federal immigration law enforcement activities, on or around District property and transportation routes, whether by surveillance, interview, demand for information, arrest, detention, or any other means, harmfully disrupt the learning environment to which all students, regardless of immigration status, are entitled and significantly interfere with the ability of all students, including U.S. citizen students and students who hold other legal grounds for presence in the U.S., to access a free public K-12 education; and

WHEREAS through its policies and practices, the District has made a commitment to a quality education for all students, which includes a safe and stable learning environment, means of transportation to and from school sites, the preservation of classroom hours for educational instruction, and the requirement of school attendance; and

WHEREAS parents and students have expressed to the District fear and confusion about the continued physical and emotional safety of all students and the right to access a free public preK-12 education through District schools and programs; and

WHEREAS educational personnel are often the primary sources of support, resources, and information to assist and support students and student learning, which includes their emotional health;

THEREFORE BE IT RESOLVED that MASC recommends to school districts to adopt a model policy that includes the following:

The District shall interact with U.S. Immigration and Customs Enforcement (ICE), state or local law enforcement agencies acting on behalf of ICE, and any agents or officers of federal, state, or local agencies seeking to enforce federal

immigration laws, strictly in accordance with the Massachusetts Attorney General's Guidance for Massachusetts Public Schools on Protecting Immigrant Students (incorporated into this Resolution), to ensure that the District fulfills its legal and moral obligation to provide all students, regardless of immigration status, access to a free public K-12 education.

BE IT FURTHER RESOLVED that the Committee declares the District to be a Safe Zone for its students, meaning that the District is a place for students to learn, to thrive, and to seek assistance, information, and support related to any immigration law enforcement that interferes with their learning experience.

BE IT FURTHER RESOLVED that the District shall, within 30 days of the date of this Resolution, create a Rapid Response Team to prepare in the event a minor child attending school in the District is deprived of adult care, supervision, or guardianship outside of school due to a federal law enforcement action, such as detention by ICE or a cooperating law enforcement agency.

BE IT FURTHER RESOLVED that any request by ICE or other agencies to visit a school site should be presented to the Superintendent's Office for review as to whether access to the site is permitted by law, a judicial warrant is required, or any other legal considerations apply; this review should be made expeditiously, but before any immigration law enforcement agent or officer appears at a school site.

BE IT FURTHER RESOLVED, in its continued commitment to the protection of student privacy, the District shall review its record-keeping policies and practices to ensure that no data is being collected with respect to students' immigration status or place of birth; and cease any such collection as it is irrelevant to the educational enterprise and potentially discriminatory.

BE IT FURTHER RESOLVED, should ICE or other immigration law enforcement agents request any student information, the request should be referred to the Superintendent's Office to ensure compliance with Family Educational Rights and Privacy Act (FERPA), student constitutional privacy, standards for a judicial warrant, and any other limitation on disclosure; this review should be conducted expeditiously, but before any production of information is made.

BE IT FURTHER RESOLVED the District shall post this Resolution in the main office of every school and at all school sites, distribute it to District staff, students, and parents using the District's usual means of communication, and ensure that it is translated into all languages spoken in students' homes.

BE IT FURTHER RESOLVED the District shall make resources—such as Red Cards, mock warrants, and mock subpoenas—available in the main offices, guidance offices, wraparound centers, and administrative buildings, and shall ensure that these resources are regularly restocked and shall include links to these resources in its published versions of the policy.

BE IT FURTHER RESOLVED the District shall offer “Know Your Rights” trainings and family preparedness sessions in collaboration with immigrant advocacy organizations and with links to these resources.

BE IT FURTHER RESOLVED the District shall offer a Q&A session for all District employees on the Attorney General's Guidelines.

BE IT FURTHER RESOLVED that the Committee directs the Superintendent to review District policies and practices regarding bullying, harassment, and discrimination and report back to the Committee at its next meeting and communicate to staff, students, and parents the importance of maintaining a bullying/harassment/discrimination-free environment for all students.

BE IT FURTHER RESOLVED the District shall work with department heads on integrating immigration-related content across disciplines.

BE IT FURTHER RESOLVED the District shall minimize the presence of unfamiliar individuals—such as non-educators, police, security personnel, and other outsiders—on school sites.

BE IT FURTHER RESOLVED the Committee affirms that licensed educators in the District have the academic freedom to discuss this Resolution during class time provided it is age-appropriate; and students are to be made aware that District counselors are available to discuss the subjects contained in this Resolution.

BE IT FURTHER RESOLVED that after-school providers and other vendors and service providers who contracted with the District shall be notified of this Resolution within 30 days and be required to abide by it; and

BE IT FURTHER RESOLVED that the Superintendent shall report back on compliance with this Resolution to the Committee at its next meeting.

RESOLUTION 2: VOCATIONAL/TECHNICAL REPRESENTATION ON THE MASSACHUSETTS BOARD OF ELEMENTARY AND SECONDARY EDUCATION

(Submitted by the Nashoba Valley Technical School Committee)

WHEREAS the Board of Elementary and Secondary Education has broad powers to set education policy and enact regulations for Massachusetts public schools; and

WHEREAS the Massachusetts core curriculum is applied at Chapter 74 schools in a different manner than most comprehensive schools; and

WHEREAS Chapter 74 programs have extensive technical specifications as well as OSHA regulations; and

WHEREAS vocational/technical expertise is required for the safe and effective application of policies and regulations;

THEREFORE BE IT RESOLVED that the Massachusetts Association of School Committees calls upon the Governor and the Legislature to add a seat to the Department of Elementary and Secondary Education board specifically for a representative with vocational/technical experience.

RESOLUTION 3: VOCATIONAL/TECHNICAL REPRESENTATION ON THE MASSACHUSETTS SCHOOL BUILDING AUTHORITY BOARD

(Submitted by the Nashoba Valley Regional Technical School Committee)

WHEREAS the Massachusetts School Building Authority (MSBA) is the established organization that assists public schools in the Commonwealth with building and renovation projects; and,

WHEREAS, vocational/technical schools have experienced an exponential increase in applications that far outpaces the current capacity of buildings; and,

WHEREAS Chapter 74 programs require physical spaces that can accommodate their program specifications as well as OSHA regulations; and,

WHEREAS the requirements of such programs are often drastically different from comprehensive school requirements;

THEREFORE BE IT RESOLVED that the Massachusetts Association of School Committees calls upon the Governor and the Legislature to add a seat to the MSBA board specifically for a representative with vocational/technical experience.

RESOLUTION 4: REGARDING CLARIFICATION OF SECLUSION STANDARDS WITHIN EMERGENCY BEHAVIORAL RESPONSE PROCEDURES (603 CMR 46.00)

(Submitted by the Hampden-Wilbraham Regional School Committee)

WHEREAS Massachusetts public schools are committed to fostering safe, supportive, and inclusive learning environments in which preventive, proactive, and trauma-informed behavioral supports are the foundation of student success; and

WHEREAS school districts prioritize the use of preventive strategies, including de-escalation techniques, co-regulation supports, sensory and environmental accommodations, and other positive behavioral interventions designed to support students before behavior reaches a crisis level; and

WHEREAS despite the effective use of preventive and supportive interventions, there are rare circumstances in which a student may experience acute dysregulation and may present an imminent risk of serious physical harm to self or others, requiring immediate emergency response; and

WHEREAS 603 CMR 46.00 permits emergency interventions such as time-out, seclusion, and physical restraint only as a last resort in such limited circumstances, and requires that all less restrictive alternatives be attempted or deemed inappropriate based on the situation; and

WHEREAS clear understanding and consistent application of the definition of emergency seclusion—specifically involuntary confinement of a student alone in a room or area from which they are physically prevented from leaving—is essential to ensuring student safety, regulatory compliance, and protection of civil rights; and

WHEREAS districts would benefit from further clarity distinguishing emergency seclusion from supportive, supervised, and voluntary or staff-guided time-out practices used to assist students in regaining emotional regulation and returning to learning; and

WHEREAS the amended regulations regarding Physical Restraint, Timeout, and Emergency Seclusion become effective August 17, 2026 and as of June 1st, 2026, the Massachusetts Department of Elementary and Secondary Education (DESE) has provided no training to districts; and

WHEREAS the amended regulations do not offer the clarity required for successful implementation;

THEREFORE, BE IT RESOLVED that the Massachusetts Association of School Committees urges DESE to provide additional clear guidance reinforcing the nuanced differences between time-out and emergency seclusion and in the Department's viewpoint types of situations/scenarios that would warrant both; and

BE IT FURTHER RESOLVED that MASC supports DESE in further clarifying the distinction between time-out, and emergency seclusion, including the use of practical, real-life

examples and decision-making tools for school personnel; and

BE IT FURTHER RESOLVED that MASC encourage ongoing in-person statewide training and professional development to ensure staff are equipped to implement preventive strategies effectively and to respond appropriately when those strategies are not sufficient to prevent escalation; and

BE IT FURTHER RESOLVED that the Department make available entitlement grants for Local Education Agencies (LEAs) that provide financial support to provide ongoing professional development to faculty, staff, and families in preventive behavior regulation strategies that include de-escalation, trauma informed practices, as well as appropriate reactive strategies for when students engage in activities that present an imminent risk of serious physical harm to self or others; and

BE IT FINALLY RESOLVED that MASC reaffirm its commitment to student dignity, safety, and access to education, and support policies that ensure emergency interventions are rare, clearly defined, consistently applied, and always secondary to preventive and supportive behavioral practices.

RESOLUTION 5: ALLOWING REGIONAL SCHOOL COMMITTEES TO ACCESS SPECIAL EDUCATION RESERVE FUNDS BY A MAJORITY VOTE OF THE SCHOOL COMMITTEE

(Submitted by the Nashoba Valley Technical School Committee)

WHEREAS Special Education Reserve Funds can help districts defray the costs of extraordinary or unexpected special education costs; and

WHEREAS Special Education costs have increased exponentially in recent years; and

WHEREAS Circuit Breaker reimbursement lags behind typical budget processes; and

WHEREAS school committees are the municipal legislature of the school district; and

WHEREAS Massachusetts General Laws currently require that districts seek approval from both the select board/city council and the school committee to access the funds; and

WHEREAS this puts an undue burden on multi-member districts that may have to seek approval from up to eight separate municipalities;

THEREFORE BE IT RESOLVED that the Massachusetts Association of School Committees calls upon the Governor and the Legislature to approve the proposed budgetary amendment allowing districts to seek approval from the school committee only.

REAUTHORIZATION OF PREVIOUSLY APPROVED RESOLUTIONS

The 2023 Delegate Assembly approved an amendment to the By-Laws that resolutions will expire at the conclusion of the Delegate Assembly three years after their adoption. Expiring resolutions may be reconsidered and readopted by the delegates at the annual meeting at which the resolutions would expire. The rationale for the amendment was that it:

- Permits three years of focus on resolutions which overlaps with two legislative cycles.
- Provides an additional opportunity for school committees to be involved in the resolution process by championing resolutions that are set to expire.
- Allows the Association to affirm what's important to the current membership by re-adoption.
- Clears expired, less relevant, or no longer supported resolutions for new priorities.

Following are the three resolutions set to expire this November unless reauthorized by a vote of the Delegate Assembly.

- Regarding Investigations and Recommendations for Transportation Bidding Procedures
- Full, Stable Funding for METCO
- Massachusetts School Building Authority Assistance Programs

REGARDING INVESTIGATIONS AND RECOMMENDATIONS FOR TRANSPORTATION BIDDING PROCEDURES

(Originally sponsored by the Southeastern Regional Vocational Technical School Committee; Submitted for reauthorization in 2026 by the Mendon-Upton Regional School Committee)

WHEREAS school districts across the commonwealth are struggling with the problem of transportation services and the bidding and purchasing of these services; and

WHEREAS a stunning number of districts find that, after soliciting multiple bids, it is a frequent occurrence that only a single bidder submits a proposal; and

WHEREAS in light of the paucity of submissions, the single bidder is able to propose significant increases over previous years exacerbating not only financial matters, but also skepticism about the integrity of the bidding process.

THEREFORE BE IT RESOLVED that the MA Association of School Committees prevail upon the Office of the State Auditor to investigate the bidding practices of school transportation providers, and to present such findings and recommendations as may be necessary to contain costs and make more efficient transportation services available for public schools.

MASC status update on this resolution:

MASC successfully lobbied the legislature, via an FY25 Supplemental Budget, to direct the Office of the Inspector General to produce a Special Education Transportation Study. The findings of that study were published in February 2026. Among the findings are: (1) Massachusetts is an outlier in its use of a reimbursement model to fund student

transportation, which puts significant administrative and financial burdens on local districts; (2) Vendors are not required to provide school districts with detailed invoices, making it impossible for districts to understand what they are paying for; and (3) There is no central repository for school transportation bids and contracts, depriving districts of helpful information when procuring these services. The report makes recommendations to address these issues and others. It also makes note that school transportation costs have been studied at least four times in the last 20 years with varying levels of success on follow-through of those studies' recommendations.

FULL, STABLE FUNDING FOR METCO

(Originally sponsored by the Arlington School Committee)

WHEREAS in 1966 the first 220 students rode buses from Boston neighborhoods to schools in seven suburbs; and

WHEREAS in 1968 the Massachusetts Legislature passed the Racial Imbalance Act, in which the Commonwealth accepted financial responsibility "for any town that wishes to enroll students from outside the district for the purpose of racial integration (subject to appropriation); and

WHEREAS in 1968 the Metropolitan Council for Educational Opportunity (METCO) assumed responsibility for implementing the provisions of the Racial Imbalance Act, providing support for students, families, and receiving districts; and

WHEREAS METCO's mission is to provide students with a strong academic foundation rich in cultural, educational, ethnic, socioeconomic, and racial diversity and foster the opportunity for children from Boston and from neighboring suburbs to develop a deeper understanding of each other in an integrated public school setting; and

WHEREAS over the last half century, METCO has reached tens of thousands of students, supporting 3,100 families annually in 31 participating suburban school districts and 190 public schools, with graduation rates and college attainment far above state averages; and

WHEREAS METCO creates environments where students, parents and teachers of different backgrounds can appreciate diversity, find common ground through shared experiences, build lifelong inter-racial friendships, and strive toward the mutual goal of preparing young people to become global citizens; and

WHEREAS METCO districts have expressed an interest in welcoming more METCO students into their schools; and

WHEREAS METCO has been recognized as the nation's most successful school integration program in the United States; and

WHEREAS requiring METCO funding to be subject to appropriation results in METCO families and partner districts spending considerable time and energy to lobby for fund-

ing to maintain the current level of services;

THEREFORE BE IT RESOLVED that the Massachusetts Association of School Committees calls upon the Governor and the Legislature to create a stable funding structure to support METCO and its partner districts that fully funds the support provided by METCO, and the cost of providing services delivered by METCO's partner districts.

MASC status update on this resolution:

MASC has repeatedly made it known to the Governor and Legislature that METCO deserves a stable funding structure. Similarly, we have supported METCO's advocacy efforts for funding in the annual budget via line item 7010-0012. In the FY26 Budget we joined them in their effort to be fully funded at \$33 million.

MA SCHOOL BUILDING AUTHORITY ASSISTANCE PROGRAMS

(Originally submitted by the Wachusett Regional School Committee)

WHEREAS the School Building assistance program is the oldest capital grant program operated by the Commonwealth, as established in MGL Chapter 70B section 1; and

WHEREAS the Massachusetts School Building Authority (MSBA) is charged with promoting the thoughtful planning and construction of school facility space in order to ensure safe and adequate facilities for public schools, and with assisting municipalities in meeting the cost thereof; and

WHEREAS the MSBA has improved the learning facilities of over 600,000 students across the Commonwealth by working with local communities to create affordable, sustainable, and energy efficient schools; and

WHEREAS the MSBA is limited in funding as stated in MGL 70B section 7, to \$1,200,000,000 plus either the rate of growth in the dedicated sales tax revenue amount as defined in subsection a of section 35BB of chapter 10, or 4.5%; and

WHEREAS the MSBA has declared a pause on their Accelerated Repair Program and limits on their Core Projects due to rising costs and inflation, and the need to stay within the Annual Cap as referenced in the Memorandum of October 19, 2022 from the MSBA Deputy Treasurer and Executive Director; and

WHEREAS each year the Accelerated Repair Program is delayed results in an increase in application backlog among the Commonwealth's existing backlog of school building needs;

THEREFORE BE IT RESOLVED that the Massachusetts Association of School Committees calls upon the Massachusetts Legislature to amend MGL ch.70B, section 7 by removing the \$1,200,000,000 cap; and

BE IT FURTHER RESOLVED that the Massachusetts Association of School Committees calls upon the Massachusetts School Building Authority to reinstate the Accelerated Repair program for 2024 applications; and

BE IT FURTHER RESOLVED that the Massachusetts Association of School Committees calls upon the Massachusetts Legislature to allow public preschools to be included in the Accelerated Repair Program and Core Program.

MASC status update on this resolution

The MSBA reinstated the Accelerated Repair Program and maintains an alternating schedule to have Statements Of Interest every two years. Public Preschools may be included in the Accelerated Repair Program and Core Program so long as the building does not exclusively serve Preschool. The cap has remained at \$1.2 billion (not taking into account year over year adjustments as outlined in MGL 70B section 7). In the FY24 budget, the legislature made adjustments related to the cap. This included raising the cap to \$1.2 billion (up from \$800 million); ensuring funding for the accelerated repair program would not count towards this cap; and allowed for the cap to rise year over year by as much as 6.5% up from 4.5%.